

Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☐ Yes ☒ No

Contracting Activity: 17th Contracting Squadron

Purchase Request / Local ID Number: F1Z50X6012A001

Program Name (and Program Element, if applicable): B523 Rooms 201&202 JWICS/SIPR VTC Upgrade (ITR 10956)

Estimated Cost/Price of the Order (including options): XXXXXXXXXX

Type Program (see DAFFARS 5302.101 for definitions): ☐ PEO Program ☒ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires: [click and select]

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☐ (A) ☐ (B) ☐ (C) ☐ (D) ☐ (E) ☐ (F) ☒ (G) Check this box to display the FAR 6.302 exceptions.

6.302 Exception: 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

17th Contracting Squadron, PKB, Goodfellow AFB Texas, Air Education and Training Command (AETC).

(2) Nature and/or description of the action being approved:

This action is for a Sole Source contract to AV3 Inc to provide Phase 2 integration services for the Joint Worldwide Intelligence Communications System (JWICS) and Secret Internet Protocol Router Network (SIPR) Classified Video Teleconferencing (VTC) and Audio Visual (AV) equipment in Building 523, Rooms 201 and 202. This effort is a continuation of the 17 TRG VTC modernization program for which AV3 was the original designer/integrator, and had initiated the development in the same workplace.

(3) Description of the supplies/services required to meet the agency's needs:

The 17 TRSS has a requirement to renew and upgrade the Classified Video Teleconferencing (VTC) and Audio Visual (AV) equipment in Building 523, Rooms 201 and 202, which serve as Joint Worldwide Intelligence Communications System (JWICS) and Secret Internet Protocol Router Network (SIPR) Classified VTC conference rooms. These facilities are crucial to the mission support of multiple organizations, Distinguished Visitors (DV), General Officers, 17th Training Wing and subordinate organizations, 17th Training Group and all training squadrons (including 313 TRS, 315 TRS, and 316 TRS) for classified mission briefings and activities essential to the training mission. The requirement includes all necessary design, procurement, installation, and integration services to deliver a turnkey solution. A list of equipment has been provided as the Independent Government Estimate (IGE) which consists of over 250 line items for all parts, labor, and services.

(4) Identification of the exception to fair opportunity and the supporting rationale:

This justification is submitted under the authority of FAR 6.103-1, "Only one responsible source and no other supplies or services will satisfy agency requirements." The proposed sole source vendor is AV3, Inc., CAGE 5MNS4

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28275 Three Notch Road,
Mechanicsville, MD 20659.

A competitive procurement is not feasible as AV3, Inc. is the only source capable of meeting the government's requirements without causing substantial duplication of cost and unacceptable delays.

Proprietary Knowledge and Highly Specialized Services: As the original Designer of Record and integrator for the recently completed VTC modernization projects in Buildings 501 and 519, AV3 possesses unique and proprietary knowledge of the system's complex programming, custom architecture, and technology. This is not a simple hardware procurement; it is an acquisition for the continued provision of highly specialized services. Extensive market research conducted throughout 2025 confirmed that no other source possesses this specific, irreplaceable knowledge of the existing enterprise VTC suite, which is critical for a secure and seamless integration.

Substantial Duplication of Cost: Pursuant to FAR 6.103-1(c)(2)(i), awarding this contract to another source would result in substantial duplication of cost to the Government. This project is Phase 2 of a planned VTC upgrade. A new vendor would be forced to expend significant time and resources to reverse-engineer AV3's proprietary designs, leading to duplicative engineering costs. Furthermore, introducing a different equipment baseline would require the unbudgeted retraining of government personnel and would fracture the single point-of-contact warranty structure, creating untenable life cycle support costs. Direct acquisition from AV3 eliminates the 5-10% pass-through markup of a prime/sub relationship, representing a direct cost saving.

Unacceptable Delays in Fulfilling Agency Requirements: Pursuant to FAR 6.103-1(c)(2)(ii), a competitive award would lead to unacceptable delays in fulfilling the agency's requirements. This contract requires all contractor personnel to possess TS/SCI clearances and the company to hold a Top Secret Facility Clearance Letter (FCL) prior to commencing work. AV3, Inc. currently meets these mandatory requirements. A new vendor would be subject to the lengthy and uncertain clearance process, which can take many months with no guarantee of approval. Such a delay would jeopardize mission-critical timelines and is therefore unacceptable.

(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer will make a determination that the anticipated cost to the Government is fair and reasonable prior to award. To support this determination, the government will leverage historical pricing data from recent Goodfellow AFB procurements that included both similar VTC equipment and installation services. This historical data will serve as the primary basis for analysis of the contractor's proposal. Direct negotiations will be conducted with the sole source vendor, and if it becomes necessary to further substantiate the proposed costs, the Contracting Officer will request other than certified cost or pricing data to ensure the final agreed-upon price is fair and reasonable.

(6) Other facts supporting the justification:

It is required that the 17 TRSS has a single point of contact for all VTC contracts for warranty support, due to the highly specialized nature of the equipment, and the custom programming of devices that is required for each individual location.

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

To foster future competition, the agency will take two key actions. First, this contract will require the vendor to deliver a complete technical data package, including all programming source code and system schematics, providing the government with the information needed for another vendor to compete for future work. Second, for the next acquisition, the agency will attempt to conduct a market research far earlier and explicitly state that all security clearance requirements are mandatory at the time of award, giving potential competitors ample notice to prepare. These steps are designed to break the dependency on a single vendor and ensure a competitive field for subsequent procurements.

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(8) Program Manager's certification that supporting data is accurate and complete:
As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.
(9) Contracting Officer's certification that the justification is accurate and complete:
As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.
(10) Approving Official's determination that one of the circumstances in FAR 16.505(b)(2)(i) applies to the order.
As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

Date 07 Jan 2026	Daniel L. Majkowski 17 TRSS/TSXP / 654-5907	Signature MAJKOWSKI.DANIEL.L [REDACTED] 55
Date 24 Feb 2026	Elzara Kimalova, TSgt, USAF 17 CONS/PKB / 325-477-3804	Signature KIMALOVA.ELZARA. [REDACTED]

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Instructions for Completing the Template IAW FAR 16.505(b)(2)(ii)(B)

- (2) State whether the action is a new order or a modification to an existing order. Identify the basic multiple award contract number and the order number for the current action. Also identify the type of the order/line items on the order (e.g., Firm Fixed price, Cost Plus Fixed Fee, etc.).
- (3) Specifically describe the supplies/services to be acquired including the price/cost and quantity of each item in the order and the total estimated value of the order. For services, state whether services are performance-based, and if not, provide rationale for not being performance based. State the delivery/performance schedule/period for the items under the order. Explain how the requirement/order fits under the scope of the basic multiple award contracts. (Note: The Contracting Officer must ensure that the order is issued within the period of performance and within the maximum value of the contract).
- (4) Include the appropriate exception from FAR 16.505 (b)(2) and the supporting rationale. FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract, a fair opportunity to be considered for each order exceeding \$3,000 unless a statutory exception applies. The specific exception that precludes the fair opportunity process for this acquisition is FAR 16.505(b)(2)(i)() [Insert A, B, C, D, or E]. If a brand name product description is being justified, use this section to explain why the particular brand name, product, or feature is essential to the Government's requirements and why other companies' similar products/services do not meet, or cannot be modified to meet, the agency's needs.

FAR 16.505(b)(2)(i)(A): "The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays". When using this exception provide a detailed justification with supporting documentation that explains the exact urgency of the requirement and the mission impact if awarded to any other contractor. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements of urgency are not acceptable.

FAR 16.505(b)(2)(i)(B): "Only one awardee is capable of providing the supplies or services required at the level at the level of quality required because the supplies or services ordered are unique or highly specialized". When using this exception provide a detailed justification, with supporting documentation, as evidence of the "unique or highly specialized" nature of the procurement. The user/customer typically provides this supporting information. Supporting documentation may be attached to the back of the document. General statements are not acceptable.

FAR 16.505(b)(2)(i)(C): "The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order". When using this exception provide information on the previously competed order under this contract and detail the economies and efficiencies that will be obtained by going sole source for the follow-on order. The user/customer typically provides this supporting information. General statements are not acceptable.

FAR 16.505(b)(2)(i)(D): "It is necessary to place an order to satisfy a minimum guarantee."

FAR 16.505(b)(2)(i)(E): "For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source."

Discuss the market research that was conducted by the user/technical team/contracting officer among the supplies/services of all awardees that resulted in the conclusion that a fair opportunity exception applied. The narrative in this section should provide a high level of confidence that the requirements of FAR 16.505(b)(1) and DFARS 216.505-70 could not be met. If no market research was conducted, state so and provide the rationale. If any other awardee expressed interest in fulfilling the requirement, but was not considered a potential source, explain why that awardee cannot provide the required supplies/perform the service.

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If the use of a brand name purchase description is being justified, the market research should include an analysis of any industry proposed alternative products or approaches to meeting the requirements. Additionally, the Government's efforts to identify as many potential sources as practicable offering the required brand name item(s) should be addressed.

(5) This paragraph needs to be tailored based on the types of CLINs in the order and the pricing arrangements on the basic multiple award contract. If the contract did not establish the price for the supply or service, the Contracting Officer must establish prices for each order IAW [FAR 15.4](#). The paragraph needs to describe the steps that will ensure that the prices/estimated cost of the order will be fair and reasonable. For example, even if firm-fixed prices were obtained under adequate price competition in the award of the multiple award contract, the Contracting Officer still needs to consider market conditions and other factors that may have changed since contract award and explain the basis in the determination that prices/costs are fair and reasonable prior to award of the order.

(6) Provide any other facts supporting the use of exceptions to the fair opportunity process.

(7) Include a statement of the actions, if any, to be taken to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made. If no actions are planned, so state and provide reasons.